Gmail

Edward Chen <edchenstudio2020@gmail.com>

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4 messages

Edward Chen <edchenstudio@hotmail.com> Wed, Oct 25, 2023 at 3:46 PM
To: "edchenstudio2020@gmail.com" <edchenstudio2020@gmail.com>, Edward Chen <edchenstudio@hotmail.com>, Huan Zhang <huan0452@gmail.com>

- Selective enforcement: you can sue your Coop, Condo or HOA for selective enforcement of rules and regulations, such as by unfairly targeting certain residents for violations while ignoring others.
- Invasion of privacy: you can sue your Coop, Condo or HOA for invading your privacy, such as by improperly accessing your property.
- Failure to maintain common areas: you can sue your Coop, Condo or HOA for failing to properly maintain common areas such as swimming pools, playgrounds, or landscaping.
- Unauthorized assessments or fees: you can sue your Coop, Condo or HOA for unauthorized assessments or fees if they charge you for expenses or fees that are not authorized by the association's governing documents or applicable law.
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- Infringement of property rights: you can sue your Coop, Condo or HOA for infringement of property rights if they violate your property rights, such as by interfering with your use or enjoyment of your property.
- Defamation: you can sue your Coop, Condo or HOA for defamation if they make false statements about you that harm your reputation or cause you financial losses.
- Discrimination: you can sue your Coop, Condo or HOA for discrimination if they unfairly treat you differently based on a protected characteristic, such as race, gender, or religion.
- Harassment: you can sue your Coop, Condo or HOA for harassment if they engage in abusive or threatening behavior towards you, such as bullying, intimidation, or verbal abuse.
- Breach of the Bylaws or House Rules: you can sue your Coop, Condo or HOA for breaching the bylaws or house rules.

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Edward Chen <edchenstudio@hotmail.com> Thu, Oct 26, 2023 at 5:31 PM
To: "edchenstudio2020@gmail.com" <edchenstudio2020@gmail.com>, Edward Chen <edchenstudio@hotmail.com>, Ed Chen <chenstudiopro@gmail.com>

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I received my bill from HOA, and it is $2300 with no explanation. As a result, I emailed and called JeanMarin and tried find out what it is yesterday, 10/25/2023. But I got no answer, and JeanMarin asked me to wait and she tried to find out. But today, until right now, I still don't receive any phone call or email from JeanMarin.

Until right now, I haven't received any notice or letter or email from HOA for the charge, but it just showed the charges on the bill. In common sense, if you charge the homeowner for the violation you need to send them the document and reasons for the fine. However, I received the notice on 9/28/2023, and I fixed and cut my seasonal beautiful flowers within 3 business days. I got it done and I took the photos and sent them to JeanMarin On Monday, 10/02/2023. What I did met the requirements and I shouldn't be charged anything. If HOA said what 6315 homeowner did was not right or didn't meet the requirements, you need to explain what reason HOA made charges. or at lease you could took pictures of my yard as evidences for the fine. From the pictures you can see, it only hold 20% to 25% green space in my yard and it has less than 60% green area(new rule but none know). all my plants are less than 4 foots in general. There was no foods on my yard whenever, and please don't make it up.

This is a fact, HOA had already charged me from July, $ 100 monthly for the same issue or "the violation" until right now. of the last email, I have already explained and proved my evidence to you, and our whole family went to Italy for visiting and piano event. How could you recharge the same issue and break HOA rule again, and raise the fee from $100 to $500.

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On 9/29, on JeanMarin's return email, it stated, The Board states, “It was saying ‘more’ than just a fine. The letter was explaining your violation for having food scraps all over your yard causing unsafe and unsanitary conditions.”

They were very false and terrible statements. There were no food scraps all over my yard. Please provide any evidence to prove what you said so. I provided you with many pictures within the attachments and you could not see any unsafe and unsanitary conditions. You could not make such terrible false statements without any direct evidence and proof.

"These were valid photos taken by the Board of the unsanitary conditions in your yard…with food scraps all over the ground, as well as flies all over your house, and your neighbors."

Of the picture you sent to me(It couldn't tell or prove that this was my house), there were several bugs on the wall and they came from the park where we live. Since the HOA didn't kill the bugs in the park next to where I live during the summer, they lived everywhere. We all suffered from the bug problem. You could ask anyone about the problem and they would tell you the same issue around their houses. If you walked in the park, bugs stayed on your hands, neck, and legs anywhere. This was my true experience because I walked into the park with a short plant and tried to find out the facts. But you used the wrong photo against the wrong person with the non-related facts because I didn't create the bugs and they came from the park naturally. It has nothing to do with my window or my yard. There is no connection between them.

The fact is that all the bugs and rats run from yard to yard and house to house and from time to time. This is common sense that no one creates bugs and rats, and they live in nature as we do anywhere. This is what we call natural lives, and all creatures live on the earth naturally and equally. If you want to destroy or kill them, HOA has to do it because we already paid for HOA to do so. By the way, if HOA doesn't kill the bugs and rats in our public park, it just creates very unsafe and Unsanitary conditions for the homeowners because everyone sees the bugs and rats anywhere in the park day by day and year by year.

The fact is all the rats and bugs running in the park and the houses next to the park last as long as our neighborhood was created and it happened to New York City, and it is a well-known issue to New Yorkers.

We paid for HOA every single month $192 as maintenance fee. Did HOA kill one of them? But all you did is trying to put your finger to any dislike neighbors, and told them you saw the bugs or rats in their houses. As a result, they would be punished and got a big fine. The fact is that all the bugs and rats running yard to yard and house to house from time to time. This is common sense that no one creates bugs and rats, and they live in nature as like we do in anywhere. This is what we call natural lives, and all the creatures live in the earth naturally and equally. If you want to destroy them, HOA have to do it because we already paid for HOA to do so. Don't you know the fact or understand it?

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Of my front drive way, common areas, there are many died plants last over 4 years and HOA have never cared, and it was not replaced with new plants. This is failure to maintain common areas.

It was terrible, and ugly, but I continued to pay for the maintenance fee with nonstop payments. This is the reason I put some flowers seeds on, and it grew beautifully. I believed that natural beauty would not harm anyone and I did the good job for HOA. This is natural beauty. Why did HOA fail to maintain my common and fine me for violation? They just said that my flower was too high and it violated the rule. However, they totally forgot their jobs to maintain my common area. I don't know why they just treat me very poorly year by year. I am an Asian homeowner, and the white people in the group in HOA don't like me.
having a house is one of my American dreams, and I work hard for it.

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- Selective enforcement: you can sue your Coop, Condo or HOA for selective enforcement of rules and regulations, such as by unfairly targeting certain residents for violations while ignoring others.

I bought the house at 6315 Ocean Ave North, Arverne NY 11692 2015. Every year I received some notices and it stated that my flowers or some plants were too high, and they needed to be cut short. Actually, all I have are seasonal plants or flowers. I decided to visit the whole neighborhood, and I found many homeowners have big plants in all seasons in their yard. Then, This is a big surprise to me. I asked myself why they did it but I couldn't do it and I got a fine every year. I learned from it and I started to take pictures. Day by day and year by year, I learned about our community and I found out that " I can do it, but you cannot" This became our community culture sadly.

The same group of people from HOA unfairly targeted me for violations, and I asked them what I could do to meet the requirements to avoid the violation. Every time, no matter how I did to fix it to meet the requirement, and I just received fines and punishments. But I have never been told what is the reason behind. Year by year, my family and I have never been treated equally and fairly every year for the last 8 years.

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Lynn who is a homeowner 6313 Ocean Aven North attacked and destroyed my garden and my property twice when we visited Italy and after I came back from my trip. I called 911 and reported the problem to the police but the police told me that I needed to report it to the HOA, and they should take care of it. As a result, I reported the problem to the JeanMarie, but it was totally ignored. Why could HOA treat me and my family and my property unfairly and irresponsibly?

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"I can do it, but you cannot" This is a great sense of being treated unfairly and unequally, and it is discrimination.
all this HOA did and is trying to put me at risk of losing my house. My yard's issue was only having over grown seasonal flowers, and they are so beautiful. Finally I just cut them off, and it was painful to me. The issue was fixed within the required days, 3 business days. but they just billed me $2300 for no reason and explanation. How could they do that? Please view all the photos in the attachments. and you will see all the high and tall trees.

In conclusion, HOA discrimination totally destroyed my American dream.

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Edward Chen <edchenstudio@hotmail.com> Thu, Sep 11, 2025 at 2:52 PM
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